

On April 6, 2026, Petitioner filed a Proof of Service stating a copy of the “Final Award” was served on Respondent. Such is not proof the neutral arbitrator served a signed copy of the award as required by Code of Civil Procedure section 1283.6. Thus, there is still no evidence Arbitrator Silverman served a signed copy of the award to each party of the arbitration as provided in the agreement.

Service of the Petition and Notice of the Hearing – Code of Civil Procedure § 1290.4

Code of Civil Procedure section 1290.4, the statute governing proper service of this motion, states, in pertinent part:

- (a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.
- (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

Pursuant to Code of Civil Procedure section 1290.2, “not less than 10 days’ notice of the date set for the hearing on the petition shall be given.”

Here, the arbitration agreement does not provide the manner of service. *See* Pet., Ex. 4(b). Petitioner personally served Respondent with a copy of the petition on August 7, 2025. *See* Proof of Service of Summons, filed August 13, 2025. Petitioner served the original notice of hearing. Of note, there is no filed notice of hearing for April 16, 2026 (although there is proof of service of the same). Therefore, the Court cannot ascertain if the notice requirements for the hearing have been met.

Based on the foregoing, the motion to confirm the contractual arbitration award has still not conformed to statutory requirements. Therefore, the petition is denied without prejudice.

2. CU0001605 Andrew Alan Johnson vs. Donald Judas

Plaintiff’s motion to compel production of unedited sub rosa and deposition of private investigator is withdrawn from calendar. To the Court’s knowledge, Plaintiff has not filed the instant motion as contemplated in the March 17, 2026, order. In any event, the motion appears moot. Per Defendants, Plaintiff advised Defendants on March 18, 2026 that the motion is no longer necessary because the sub rosa footage was produced to Plaintiff and the private investigator was being produced for deposition.

3. CU0001697 County of Nevada vs. Wild Earth Property LLC, et al.

Receiver's March 20, 2026, motion for discharge of receiver and exoneration of surety is granted.

A receiver is an independent third party, a “hand” or “agent” of the court that acts only upon the direction and authority of the appointing court. *Takeba v. Superior Court* (1919) 43 Cal. App. 469, 475. All receiver actions undertaken are subject to final ratification by the court, and the discharge hearing is the appropriate venue for a court to utilize its discretion on all receivership actions. *Hanno v. Superior Court* (1939) 30 Cal.App.2d 639, 641. Once the work of a receivership is finished, the receiver is required to submit a motion or stipulation for discharge, and a summary of all accounts, payments, and debts of the receivership. See California Rules of Court, Rules 3.1183 and 3.1184. The order discharging the receiver is necessary to fully complete the receivership and end the court's involvement. *Jun v. Myers* (2001) 88 Cal.App.4th 117, 123-24. The discharge does not happen automatically and must be requested. *Scoville v. De Bretteville* (1942) 50 Cal.App.2d 622, 632; *Hanno*, 30 Cal.App.2d at 641. The discharge order settling the account is the final judgment in a receivership proceeding. *Aviation Brake Systems, Ltd. v. Voorhis* (1982) 133 Cal.App.3d 230, 233. Because all issues concerning a receiver's actions are fully adjudicated as part of the final accounting, the discharge order operates as *res judicata* to any claims of liability against the receiver in his official capacity. *Id.* at 234; *Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership* (2017) 8 Cal.App.5th 910, 926.

The Court has reviewed the instant motion. The Court appointed the receiver to bring the subject property into compliance with all applicable state and local laws and sell the property, which he has now completed. The Court has also previously approved the monthly accountings submitted by the receiver. The Court is satisfied that there is good cause to discharge the receiver at this time and exonerate the surety as requested.

Accordingly, the receiver's motion is granted in its entirety. The Court appreciates the dedicated service of the receiver in this matter.

4. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.

No appearances are required. A party reserved a motion hearing date; however, no motion has been filed. Moreover, a notice of settlement has been filed. The hearing today is withdrawn from calendar. The case management conference is confirmed for June 1, 2026, 09:00.

5. CU0002002 Cynthia Repella vs. Tania Blair, et al.

Appearances are required. Plaintiff filed a notice of a bankruptcy stay on September 19, 2025. The Court must be advised whether the stay remains effective or otherwise.

Assuming the stay has been lifted, Plaintiff filed a January 26, 2026, motion for leave to file an amended complaint. There is no proof of service of the motion on Defendant and there is no response from Defendant. That said, Defendant indicates in her April 1, 2026 case management conference statement that she intends to file a demurrer *if* the motion is granted (suggesting she had some notice of the motion). The parties shall verify whether Defendant has been served with